

Why A Constitution - Russell Hardin

There are two main schools of constitutional theory. The first and the oldest grounds constitutions in contractual agreement the other grounds them in coordination.

The contract theory is an ostensible justification of obedience to the monarch or state while the coordination theory is a causal theory and in certain senses a normative theory

It is absurd to suggest that the normative quality of a constitution is to be determined from its content alone. It is fundamentally a consequentialist device, and to judge a constitution requires an analysis of its actual consequences

This understanding of its actual consequences is dependent on the nature of the society that it is to govern. What would constitute a good constitution for one society might be a poor constitution for another. It is therefore a discipline that is grounded in social science and within pragmatic and concrete discussions of outcomes over abstract musings

Contract theory

The metaphorical claim is that the government is established by contract. There are multiple objections against this metaphor

1. Constitutions are enforced by social convention. Contracts are enforceable by a third party, usually the state. Constitutions are not.
2. Contracts govern quid pro quo between parties However, it is difficult to imagine such a quid pro quo arrangement in the context of a constitution
3. Once the transaction is complete, the contract ceases to govern further relations. Constitutions were as govern into the distant future and have no project for completion in sight, they are never to be fulfilled
4. Contracts require genuine agreement to make them binding. Constitutions merely require acquiescence to make them work
5. Most interestingly if constitution is a contract, it would presuppose that parties have undertaken a contract to determine what is the definition of a contract since the constitution is the foundation of the legal system as it is.
6. Constitutions are based on coordination games whereas a contract is based strategically on a prisoner's dilemma Contracts have the strategic nature of a prisoner's dilemma in game theory. A prisoner's dilemma is a situation where both parties would be better off cooperating, but each individual has a strong incentive to cheat.

For instance, if A buys a laptop from B online, the seller has an incentive to not make the delivery and therefore get free money, whereas the buyer has the option to not pay his side of the contract and get a free laptop. The law on contracts resolves this issue by ensuring that there is a third-party enforcer who punishes the defection and changes the payoff of cheating. Constitutions to the contrary are not about stopping people from cheating, it is however about getting everyone to choose the same option when multiple options exist. A classic analogy involves driving and coordinating two cars on a road. If those sitting in car A decide to turn left and those sitting in car B decide to turn right, they will both end up crashing. Therefore constant communication will be required. It does not matter what direction they wish to turn to what matters is that both parties choose the same direction. It is the same theory that applies to governance. If half the population

favors leader A, half the population favors leader B. They are heading for a civil crisis. Therefore the objective is to bring all parties together on the same plane. It is therefore not enforced by a third authority but rather acts as a focal point which enables the institutionalization of collective choice. Through the election process enshrined in the Constitution, a majority is culled out and a smooth transfer of power takes place.

In a prisoner's dilemma therefore the outcome that would be best for one player can be worst for the other however in a coordination game the best outcome for each player is also the best or near best outcome for the other player

This is evidenced in the history of the making of the US Constitution. Alexander Hamilton and the other financiers and industrialists could not have been better off without the agrarians like Thomas Jefferson being worse off. Therefore, a regime that allowed them to cooperate in managing the export of southern crops and the import of farm implements for industries benefited both groups. The objective of the constitution was to therefore eliminate trade barriers between the 13 states. The constitution therefore was designed and adopted as a mutually beneficial agreement

Traditional contractarian thinkers acknowledge one deep problem of their theories. There cannot be a contractual obligation, without personal agreement. Yet it is hard to find a theoretical anchor that would justify the claim of future generations being bound to the same contractarian order without having any say in this regard.

David Hume prominently dismisses the claim that there could have existed an agreement on political order in any modern society. He argues that modern citizens do not believe that their political or legal obligations are grounded in the fact that they agreed to such a system. While John Rawls agrees with this idea in substance, he still classifies his theories within the contractarian tradition.

Contractarian thinkers have always posited their ideas as a model or a hypothetical condition to address the creation of a polity. Voting on a constitution is the closest thing that we have come to that resembles a contract in politics, however that too is founded on majority vote and is not unanimous in any sense for it to find its place within the contractarian model.

Some thinkers have attempted to reform traditional contractarian thought through the idea of contractualism.

Contractualism is supposed to resolve the problem of placing a moral obligation for a regime one never agreed to.

Its original definition is as follows

An act is wrong if its performance under the circumstances would be disallowed by any system of rules for the general regulation of behavior which no one could reasonably reject as a basis of informed unforced general agreement

— Thomas Scanlon

It is worth breaking down this idea. The wrongness of an act is a result of the following: It must be disallowed by a system of rules that governs general behavior. These rules must be such that they are to a certain extent accepted and revered universally, forming part of such a fundamental notion of human morality that no one could reasonably reject it as an uninformed decision. There is a deemed consent since the moral threshold is so fundamental and so elementary that each person is assumed to give their assent to it.

Scanlon's idea is founded on a mathematical and arithmetic understanding of morals which can be quantified and reduced to numbers

Of course in an ideal situation where presumably nobody disagrees with a conclusion that is come about collectively, it is possible for one to deduce what is reasonable in such a vernacular claim.

However, if one were to refuse or reject such principle, there is nothing that can be said to such person. The majority might reject the dissent as being completely wrong. However once a disagreement or discordant chord has been struck, the element of agreement that Scanlon appeals to will be violated.

It would become a system that comprises of rules which could be reasonably rejected and its imposition thereof could form the basis of an forced general agreement

Rawls, on the contrary, opines that if his model of a veil of ignorance is adopted a person city seated within the veil of ignorance is bound to reach the same moral conclusions as those of Rawls.

Therefore if everyone reaches to the same conclusion, justice is not a matter of negotiation or culture or personal values, it is a mathematical proof. And if someone descends from his moral and philosophical principles, such persons simply failed at logic since they are not moral positions, but rather logical axioms or postulates that Rawls is attempting to develop while he agrees that societies might be fundamentally structured in different ways. He still believes that if these changing variables are taken into account, the result will still be a uniquely correct and coherent and determinate constitution for each society, although no person in his right mind would give any weight to such a theory.

Contractarian thinkers are unable to systematically place the following phenomena. In certain cases one could very well disagree with the rule that is adopted, yet find it reasonable for oneself to abide by that rule. For instance, the result of the election of 2000 could appear in some senses morally wrong to US citizens, yet no citizen seems to have thought it right to oppose the result by taking an action that would have made the Republican candidate president. There was a collective decision to uphold the constitutional principle even though there are some that would have thought the system to be perverse and in need for change.

This is similar to the example given earlier, passengers seated in both cars or a subset of the passengers seated in both cars could very well be of the opinion that the decision to turn right or left is incorrect. However, once the group has agreed to such a decision, they would not in most cases want to alter the group decision only to jeopardize the risk of collision. In the same way, while disagreements regarding the appointment mechanism might exist, there is also a deep-seated understanding that a reversal of the system would substantially prejudice the benefits received out of the coordination that the current system achieves

Of course the most pressing critique is the most obvious one that there is no understanding or definition of reasonableness or no clear account of how to judge reasonableness even if the vernacular term is considered fit in the given cases. Here the vernacular term is the word reasonableness. Since it is imprecise and in substance does not mean anything

Coordination Theory

Before Hume there were three main theories of social order. These were based on theological views, contractarian agreements or draconian coercion by the state. Hume disagrees with all three. For him the theological view is beyond determination since it is not empirical. The contractarian thinking fails due to absence of consent as discussed earlier and Hobbes's argument for a draconian force is demolished entirely for it lacks an empirical foundation for creating an orderly society.

His own theory is called the dual convention theory.

The first convention is the one that constitutes the government and gives its powers. The second is where the populace acquiesces in the rule emerging out of the first convention through its own second convention. This theory demands constitutional limits on the power of the government to interfere in democratic processes and it contains an internal structure for checks and balance.

In this theory, acquiescence is a compelling fact. He argues that one acquiesces since it is difficult to organize the de facto collective action that would be needed to topple an existing convention or to organize a new one. It is difficult often to mobilize the opposition that is required to change an existing convention. Again, the foolishness of the Electoral College would be an apt example, yet there was no substantial effort to change this system. However, it is not as if one is stuck with the document or convention till perpetuity. The idea of coordination theory is to not create stagnancy but rather to increase the costs and obstacles to recoordination. These commitments are essential for creating a stable and flourishing constitutional structure

Establishing a constitution is a massive act of coordination and it itself creates a convention that depends for its maintenance on self-generating incentives and expectations. Clearly, this system cannot be called a true agreement. However, it is the best option which ensures that a constitutional system is followed by each person in a society

For Hardin, Hobbes is not a contractarian thinker in the first place. He is in fact the original thinker of coordination theory since those stuck in the state of nature coordinate on obeying a single leader for Hobbes not abiding by the letter of the sovereign would not be incorrect primarily for causing contractual consequences, but because failing to do so could wreak havoc on the social structure as it currently stands. Hence, for one's own good, he must acquiesce in the decisions that have been taken by the sovereign, so long as he is protected from the anarchy of the state of nature

Caveats and Clarifications

Contract theory suppose that the problem of establishing a constitution is one that involves constant bargaining and negotiation between stakeholders Hardin argues on the contrary that in fact for a constitution to work it must coordinate its populace on some level of acquiescence to the new government that it establishes

Even coordinating on a central government with modest powers led to instant resolution of problems that could not have been solved in the earlier Confederation before the new constitution these issues had been conflictual problems free riding cheating and the threat of instability very similar to the outcomes that the prisoner's dilemma assumes for contracts. However, through coordination there was swift resolution

Even if it is supposed that a constitution is the result of a bargain, if it is to work in establishing a social order, it must coordinate on acquiescence to the new government. In such senses, it coordinates on social order and is self-executing and self-enforcing

An example of how the contract theory fails in real-world application is given by Hobbes himself. He correctly supposes that most regimes in the world were established by acquisition or conquest, where someone usurped the power already in place. Thomas Paine also identifies that this is the de facto structure of how English monarchy has worked for generations. Therefore, when a new regime is established, it is not possible, at least within the contractarian paradigm, to automatically transfer power to the new regime.

But the new regime works nonetheless. This would not be possible in a contractarian model.

Coordination theory might offer a possible explanation. Once the government by acquisition is established and it is in place and working to achieve order this is possible simply because the social order is a result of general acquiescence to the regime rather than genuine approval or support for it to gain

initial coordination on a constitution therefore there is a need for a broad degree of support once the power of the institution is established then such acquiescence is no longer continuously required.

Constitutionalism thus is a two-stage problem. At first stage we coordinate on a constitution and a form of government. On the second stage the government then enables us to maintain order through institutionalized structures created by the constitution that leverage the coordination framework.

What Constitutions Do

Justice is a two-stage concern. It brings about mutual advantage, but individual actions seen in a vacuum may not indicate this mutual advantage because it is the whole scheme of justice that is mutually advantageous, not its adjudications in a specific case.

The constitution is similarly a document that attains mutually advantageous outcomes when considered holistically. However, in such a government, actors cannot determine simply at every turn what would be the best thing to do. They must accomplish whatever best is possible within the constitutional structure and the institutional structure.

What a constitution therefore must do is to coordinate us at a minimum on a social order without the need for draconian enforcement

This coordination may sometimes be infeasible if it is highly heterogeneous, divided, split. If one is hostile to the provisions of a constitution, there is no possibility of coordination. Coordination can manage the chaff of political conflict but not the fundamental fault lines between large and significant groups

Limited Government

There is an internal conflict in Hobbes. He does not want to limit government sovereignty since to him it allows for the possibility of overriding the government generally, meaning that it is no longer sovereign. Hume argues that conventions are de facto self-regulating or self-enforcing and this possibility resolves some of Hobbes' problems.

Hume's task here is to show that government officials can be constrained to act for the general good. This is possible because they act on principles that do not directly affect their own interests. The trick is to change our circumstances to make us observe the law of justice as our nearest interest. If it is possible to constrain a magistrate from acting unjustly, then the problem is in substance resolved. Since magistrates have no interest in injustice committed or have a strong bias in favor of justice. The institution, therefore, is modeled in a manner that compels a preference to the greater good.

This is done by a system of checks and balances and not merely separation of power. In Madison's language, this is the idea of having ambition and counter ambition. So the monitoring of all by all provides this self-regulating, self-governing system for a society.

Importantly, Hardin agrees that the Hume-Madison device is unclear in its working. The history of Indian constitutional law indicates that a checks and balances approach or the regulation or governance of all by all often creates constitutional instability, famously resulting in the 1975 declaration of Emergency.